

26PR00561 Matter of Yolanda DeRouen Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-14

Motion: Petition for Order Confirming Existence of Trust and Title to Trust Assets

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Source SHA-256: 7213a23b1a9aba9ec39d7e368d14330306e135aba1f066e736df3efa06d45592

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Tentative Ruling: This matter is CONTINUED to November 25, 2026 at 9:30 am in Department 63 for the reasons set forth below.

The petition is not verified as required by California Probate Code [Prob C] §1021(a)(1). Also, there is no proof of service filed, so the Court cannot determine whether service was made in accordance with Prob C §§851 and 17203. The Court notes that notice to the personal representative of the settlor's estate (and if none, to each heir and devisee of the decedent, and all persons named as executors of the will of the decedent, so far as known to the petitioner) is due pursuant to Prob C §17203(c).

The Court also notes the general rule that a trustee who is not licensed to practice law may not normally self-represent when litigating on behalf of the trust. However, the primary concern raised by a personal representative appearing in propria persona is that they are representing the interests of others and not just themselves. Estate of Sanchez (2023) 95 Cal.App.5th 331, 341. Here, the petitioner is the sole trustee and the sole beneficiary with respect to the asset at issue in the petition. Therefore, the petitioner is not representing the interests of others, but is only representing her own interests in this matter, so she may appear self-represented. See Aulisio v. Bancroft (2014) 230 Cal.App.4th 1516, 1525.